

Company: «CompanyName»

Insured: «NamedInsured»

Policy Number: «PolicyNum»

Endorsement Effective Date: «PolEffDate»

**PUBLIC COMPANY LIABILITY INSURANCE
PRIVACY, COLLECTION AND DISCLOSURE EXCLUSION – INSURING AGREEMENT C**

It is agreed that:

1. Section Part 5, Common Exclusions of this Policy is amended by the addition of the following:

In addition to the Exclusions listed in the **Coverage Parts**, the **Insurer** shall not be liable under this Policy to pay any **Loss** arising from any **Claim** made against any **Insured** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged:

- a. access to or disclosure of, any organization's or person's confidential or personal information, including but not limited to patents, copyrights, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information;
- b. unauthorized collection of information by any **Insured** or the failure to provide adequate and legal notice that such information is being collected;
- c. violation of any federal, state, local or foreign regulation, statute, rule or law:
 1. that requires commercial entities that collect personal information to post privacy policies, adopt specific privacy or security controls, or provide notification to individuals in the event personal information has been compromised or potentially compromised; or
 2. limiting or prohibiting facsimile, electronic mail or any other means of communication, including but not limited to, the Telephone Consumer Protection Act 47 U.S.C. Section 227, CAN-SPAM Act of 2003, or any similar Federal Communications Commission regulation or similar provision of any federal, state, local or foreign regulation, statute, rule or law;
- d. access to, theft of, or use of an **Insured's** computer hardware, software, web site, electronic systems, network or programs by an unauthorized person or entity, or access by an authorized person in an unauthorized manner, or the transmission or receipt of unauthorized, corrupting, or harmful computer code, including but not limited to adware, cookies, viruses, spyware, Trojan horses, logic bombs or worms;

Provided however, this exclusion shall only apply to **Loss** arising from a **Claim** made against the **Company** under Insuring Agreement C.

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.